

Rajveer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 February 2016 · WRIT - C No. 6292 of 2016 · **Writ dismissed; no cause of action; relegated to clause 7.10.**

HEADNOTE

A writ challenging an electricity recovery citation was dismissed. The Division Bench held that the petitioner had no cause of action because the citation was not issued against him, and that clause 7.10 of the Electricity Supply Code, 2005 provided an alternative and efficacious remedy before the appropriate forum, so Article 226 interference was declined.

FACTUAL SUMMARY

Rajveer Singh petitioned the Allahabad High Court against a recovery citation dated 23 January 2016 for electricity dues. He submitted that the citation had been issued against his grandfather Megh Singh, who was dead, and that the police were nonetheless harassing him. Counsel for the petitioner and for respondent no. 4 were heard. The Court perused the record and dismissed the writ at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy before consumer forum

HOLDING

A writ petitioner who challenges an electricity recovery citation that has not been issued against him has no cause of action under Article 226. In any event, clause 7.10 of the Electricity Supply Code, 2005 furnishes an alternative and efficacious remedy before the appropriate forum, where all grounds taken in the writ may be raised, and the High Court will not interfere. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 23 JANUARY 2016 ISSUED AGAINST THE DECEASED MEGH SINGH, AND WHETHER THE PETITIONER COULD BE PROCEEDED AGAINST FOR THOSE DUES.

¶ 2-4